

TENTATIVE RULING

Jose Trinidad Morales v. Hilltown Packing Co, Inc. (26CV002001)

Defendant Hilltown Packing Co., Inc.’s Motion to Compel Arbitration, Dismiss Class Claims, and Stay Action

Defendant moves for an order compelling arbitration of the claims asserted by Plaintiff Jose Trinidad Morales-Dominguez. Plaintiff is a former employee of Defendant and filed the present lawsuit asserting class claims for Labor Code violations. Plaintiff did not file an opposition to the motion.

The Motion is **GRANTED**.

On a motion to compel arbitration, the moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 972.) If this burden is met, the burden shifts to the party opposing arbitration to prove by a preponderance of the evidence any fact necessary to its defense against enforcement of the agreement. (*Id.*) The trial court “sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 CA4th 836, 842, 181 CR3d 781, 786; *Gamboa v. Northeast Community Clinic* (2021) 72 CA5th 158, 164-165, 286 CR3d 891, 895-896.)

The evidence presented by Defendant meets the standard for authentication of a validly signed arbitration agreement. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53.) The evidence presented by Defendant further establishes that the claims in this action are covered by the terms of the arbitration agreement. There is no evidence that Defendant has waived the right to arbitration, and there is no evidence that the arbitration agreement is either procedurally or substantively unconscionable.

With respect to dismissal of class claims, the plain language of the arbitration agreement states that Plaintiff waives all class action claims. (Ex. A, ¶ 7.) This is enforceable under the FAA. (See *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 341.) Since the arbitration agreement is valid and enforceable for the reasons set forth above, it follows that the class action claims have been waived and must be dismissed.

The case is stayed pending the completion of arbitration.

Defendant is to prepare the court’s order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.